

NOTICE OF LEGAL POSTPONEMENT OF SALE

SUPREME COURT COUNTY OF KINGS

DLJ MORTGAGE CAPITAL, INC., Plaintiff

AGAINST

PUBLIC ADMINISTRATOR OF KINGS COUNTY TO THE ESTATE OF FELIX KELLY,
JACQUELINE KELLY INDIVIDUALLY AND AS SURVIVING SPOUSE OF FELIX KELLY
AS HEIR TO THE ESTATE OF FELIX KELLY, ET AL., Defendant(s)

Pursuant to a Judgment of Foreclosure and Sale duly entered October 10, 2024, I, the undersigned Referee will sell at public auction at the Kings County Supreme Court, in Room 224, 360 Adams Street, Brooklyn, New York 11201 on May 21, 2026 at 2:30 PM, premises known as 1295 New York Avenue, Brooklyn, NY 11203. All that certain plot piece or parcel of land, with the buildings and improvements erected, situate, lying and being in the Borough of Brooklyn, County of Kings, City and State of New York, Block: 4950 Lot: 54. Approximate amount of judgment \$769,450.27 plus interest and costs. Premises will be sold subject to provisions of filed Judgment Index # 517799/2022.

Original Sale Date: April 30, 2026

Bernard M. Alter, Esq., Referee

Gross Polowy, LLC
1775 Wehrle Drive
Williamsville, NY 14221

19-000072

SUPREME COURT STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 517799/2022

Client's File No.: 19-000072

DLJ MORTGAGE CAPITAL, INC., Plaintiff

vs.

PUBLIC ADMINISTRATOR OF KINGS COUNTY TO THE
ESTATE OF FELIX KELLY, JACQUELINE KELLY
INDIVIDUALLY AND AS SURVIVING SPOUSE OF
FELIX KELLY AS HEIR TO THE ESTATE OF FELIX
KELLY, MARLENE KELLY AS HEIR TO THE ESTATE
OF FELIX KELLY, ET AL., Defendant(s)

AFFIRMATION OF SERVICE BY MAIL

Cassidy Ertel, affirms and says that I was at the time of service over the age of eighteen, not a party to this action and resides in the State of New York.

That on May 4, 2026, I mailed a true copy of the Notice of Sale in this action on those defendants, whose names, representation and designated addresses appear below, by depositing a true copy of same, enclosed in a postpaid properly addressed wrapper, in an official depository under the exclusive care and custody of the United States Postal Service within the State of New York.

Referee:

Bernard Mitchell Alter, Esq.
26 Court Street, Suite 1812
Brooklyn, NY 11242

Bernard J. Tordesillas, Esq.
Attorney for Defendant New York City Environmental
Control Board
375 Pearl Street 30th Floor
New York, NY 10038

Public Administrator of Kings County to the Estate of
Felix Kelly
360 Adams Street, Room 144
Brooklyn, NY 11201

Bernard J. Tordesillas, Esq.
Attorney for Defendant New York City Transit
Adjudication Bureau
375 Pearl Street 30th Floor
New York, NY 10038

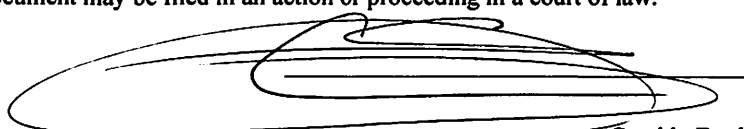
John Emefieh, Esq.
Attorney for Defendant Jacqueline Kelly
294 Atlantic Ave
Brooklyn, NY 11201

Bernard J. Tordesillas, Esq.
Attorney for Defendant New York City Parking
Violations Bureau
375 Pearl Street 30th Floor
New York, NY 10038

John Emefieh, Esq.
Attorney for Defendant Marlene Kelly
294 Atlantic Ave
Brooklyn, NY 11201

Christopher E. Medina, Esq.
Attorney for Defendant Bank of America, N.A.
40 Marcus Drive Suite 200
Melville, NY 11747

I affirm on May 4, 2026 under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the foregoing is true, except as to matters alleged on information and belief and as to those matters I believe it to be true, and I understand that this document may be filed in an action or proceeding in a court of law.



Cassidy Ertel